

24STCV01620 24STCV01620

County: los-angeles

Division: Civil Law and Motion

Department: 506

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Case Number: 24STCV01620 Hearing Date: August 20, 2026 Dept: 506

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR THE

COUNTY OF LOS ANGELES - CENTRAL DISTRICT

VICTOR GODALES,

Plaintiff,

vs.

MEI KUEN CHEUNG AND JIMMY CHEUNG, as Trustees
of the Cheung Family Trust, Dated October 10, 1996,

Defendants.

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CASE NO.: 24STCV01620

[TENTATIVE] ORDER DENYING MOTION TO WITHDRAW/AMEND
DEEMED ADMISSIONS; DISMISSING ACTION

Dept. 506

8:30 a.m.

August 20, 2026

On January 22, 2024, self-represented
Plaintiff Victor Godales filed this action against Defendants Mei Kuen Cheung and
Jimmy TM Cheung, as Trustees of the Cheung Family Trust, Dated October 10, 1996. "The parties and relevant individuals
share a
last name. For clarity, convenience, and
in order to avoid confusion, we refer to them by their first names and intend no
disrespect." (Cruz v. Superior Court
(2004) 120 Cal.App.4th 175, 188, fn. 13.)

On
August 27, 2024, the Court granted Defendants' motion to deem Requests for Admission
admitted by Plaintiff.

On
January 6, 2026, the Court granted Mei Kuen's motion for summary judgment, which
was based on Plaintiff's deemed admissions.
On February 26, 2026, the Court entered judgment in favor of Mei Kuen and
against Plaintiff.

At

the March 30, 2026 Final Status Conference, defense counsel represented that Jimmy is deceased. The Court set Orders to Show Cause Re: Dismissal of Jimmy or Entry of Default Against Jimmy.

On

April 13, 2026, the Court entered default against Jimmy.

Now

pending before the Court is Plaintiff's motion for relief from admissions and the Court's Order to Show Cause Re: Dismissal for Failure to Enter Default Judgment against Jimmy.

MOTION

TO WITHDRAW DEEMED ADMISSIONS

On

July 27, 2026, Plaintiff filed a motion to withdraw or amend his deemed admissions from August 27, 2024.

A

party may withdraw or amend an admission made in response to a request for admission only on leave of court. (Code Civ. Proc., § 2033.300, subd. (a).) A court may permit the withdrawal only if it determines the admission was the result of mistake, inadvertence, or excusable neglect, and the party who obtained the admission will not be substantially prejudiced in maintaining that party's action or defense on the merits. (Code Civ. Proc., § 2033.300, subd. (b).) This also applies to deemed admissions. (*Wilcox v. Birthwhistle* (1999) 21 Cal.4th 973, 983.)

"Because

the law strongly favors trial and disposition on the merits, any doubts in applying section 2033.300 must be resolved in favor of the party seeking relief. Accordingly, the court's discretion to deny a motion under the statute is limited to circumstances where it is clear that the mistake, inadvertence, or neglect was inexcusable, or where it is clear that the withdrawal or amendment would substantially prejudice the party who obtained the admission in maintaining that party's action or defense on the merits." (*New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1420-1421.)

Plaintiff

contends that he “does not ask the Court to vacate, modify, or relitigate the February 26, 2026 judgment entered in favor of Mei Kuen Cheung, as Trustee.” (Motion at p. 2; see Godales Decl. ¶ 1.) Instead, Plaintiff appears to seek relief so he can prove his entitlement to a default judgment against Jimmy. (See Godales Decl. ¶¶ 13-14.)

Plaintiff

does not show mistake, inadvertence, or excusable neglect that entitles him to relief. He did not receive the Requests for Admission that were served by mail on May 20, 2024 because he had been locked out of his unit nine days earlier pursuant to a writ of possession in an unlawful detainer matter. (Godales Decl. ¶¶ 3-4.) But it is Plaintiff’s obligation to file and serve a written notice of any change in his contact information. (California Rules of Court, rule 2.200.) Plaintiff’s “non-receipt after displacement” was caused by this inexcusable neglect. (See Godales Decl. ¶ 5.) Plaintiff provides no other information before his January 5, 2026 service of responses—well over a year after his deemed admissions. (See Godales Decl. ¶ 6.)

Moreover,

as discussed in detail below, Jimmy must be dismissed from this action. Accordingly, relief from deemed admissions will have no effect, and the motion is denied.

OSC

RE: DISMISSAL

At

the March 30, 2026 Final Status Conference, defense counsel represented that Jimmy is deceased. On April 9, 2026, Plaintiff filed an ex parte application for leave to file an amended complaint. In that application, Plaintiff also acknowledged that Jimmy died in 2021—“approximately three years before this action was filed in 2024. The lawsuit as to JIMMY CHEUNG was therefore a nullity.” (Application at p. 2.)

Accordingly,

it appears that Jimmy was never a valid defendant. Jimmy was no longer a Trustee of the trust on January 22, 2024, when Plaintiff filed this action. “Plaintiffs in a default judgment proceeding must prove they are entitled to the damages claimed.” [Citation].” (Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267, 288.) “[T]he plaintiff must affirmatively establish

his entitlement to the specific judgment requested.” (Id. at p. 287.) Plaintiff cannot do this when Jimmy was not a proper party.

The
Court therefore dismisses the action against Jimmy.

CONCLUSION

The
Motion for Order to Withdraw or Amend Deemed Admissions is DENIED.

Defendant
Jimmy TM Cheung, as Trustee of the Cheung Family Trust, Dated October 10, 1996 is
DISMISSED WITH PREJUDICE.

Moving
party to give notice.

Parties
who intend to submit on this tentative must send an email to the Court at
indicating intention to submit. If all parties
in the case submit on the tentative ruling, no appearances before the Court are
required unless a companion hearing (for example, a Case Management Conference)
is also on calendar.

Dated this 20th day of August 2026

Hon. Thomas D. Long

Judge of the Superior
Court